

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 41-009
Amendments to Title 17 of the Chickasaw Nation Code
(Malicious Mischief Offense)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations on criminal offenses and wishes to amend those rules.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature authorizes and approves that the provisions of this Resolution shall become effective upon publication in the Chickasaw Nation Code.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendment to Title 17, Chapter 3, Article A, Section 17-301.2 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 17-301.2

MALICIOUS MISCHIEF.

A. It shall be unlawful to maliciously injure, deface, or destroy any real or personal property not his or her own.

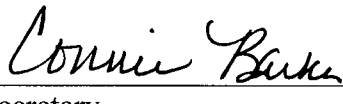
B. If the injury, defacement, or destruction of the real or personal property has a loss which has an aggregate value of less than one thousand dollars (\$1,000), Malicious Mischief shall be punishable by a fine of not to exceed five thousand dollars (\$5,000), by a term of imprisonment not to exceed one (1) year, or by both such fine and imprisonment.

C. If the injury, defacement, or destruction of the real or personal property has a loss which has an aggregate value of one thousand dollars (\$1,000) or more, Malicious Mischief shall be punishable by a fine not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

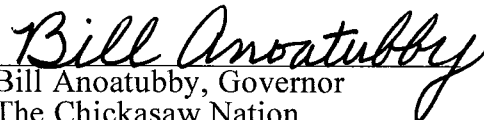
Executed in regular session of the Chickasaw Tribal Legislature Meeting, at Ada, Oklahoma on February 16, 2024, by a vote of 12 ayes, 0 nays, and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: FEB 16 2024

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Explanation:

This resolution amends the Chickasaw Nation Code to change the range of punishment for Malicious Mischief to include both a misdemeanor and felony offense depending on the aggregate amount of damage sustained.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature